

Court No. - 5

Case :- WRIT - C No. - 3991 of 2022

Petitioner :- Gudiya Devi

Respondent :- State Of U.P. Thru. Prin. Secy.
(Energy) Civil Sectr. Lko. And Others

Counsel for Petitioner :- Rajesh Kumar Kashyap

Counsel for Respondent :- C.S.C.,Aprajita
Bansal

Hon'ble Mrs. Sangeeta Chandra,J.

Hon'ble Om Prakash Tripathi,J.

1. Heard.

2. Notice on behalf of respondent nos.2, 3 and 4 has been accepted by Ms. Aprajita Bansal, learned counsel for the respondent.

3. This petition has been filed praying for a direction to be issued to the respondent nos.2 to 4 to stop generating the illegal electricity bills and to generate correct electricity bill on the basis of actual amount of consumption of electricity. It is the case of the petitioner that the petitioner has taken a electricity connection for domestic use on which earlier bills were generated of Rs.972/-, Rs.660/- or even Rs.380/- but now for the month of June, 2022, although the electricity bill shows the consumption of only 33 Units of electricity, the bill that has been issued to her shows Rs.1,28,926/- as the amount payable by the petitioner.

4. Learned counsel for the petitioner has submitted that the petitioner wrote several letters to higher authorities of the respondent nos.2 to 4 for issuance of correct bill for electricity actually consumed by her but no action has been taken in this regard. Learned counsel for the petitioner has placed reliance upon paragraph-12 of the petition which states that one Rajnish Verma, Mob. No.7355754757 has continuously contacted the petitioner and demanded illegal gratification and also asked her to meet the Junior Engineer concerned otherwise her electricity connection shall be disconnected and recovery shall be issued against her.

5. This Court has perused Page No.32-33 of the

petition and finds that for consumption of electricity of 33 units only, a bill of Rs.1,28,926/- has been shown as total payable amount whereas the current amount shown as only Rs.421.50/-, the arrears of Rs.1,26,731/- has been shown in the said electricity bill.

6. It is apparent that there are certain arrears of electricity, which the petitioner has failed to pay. The bill for the month April, 2022 which is being filed as annexure at page 32 of the petition however shows no arrears and therefore it is not understood as to how arrears of Rs.1,26,731/- has been shown just after two months in the Bill issued for June, 2022.

7. This petition is ***disposed of*** with a direction to the petitioner to approach the respondent no.3 by filing appropriate application under paragraph-6.5(b) of the Electricity Supply Code, 2005 within two weeks from today. If such an application is filed, the same shall be considered and the grievance of the petitioner be redressed in accordance with law by the respondent no.3 within a further period of three weeks thereafter. For a period of six weeks or till decision is taken on the application of the petitioner, recovery if any in pursuance of disputed bill dated 13.06.2022 shall remain stayed.

Order Date :- 27.6.2022
Rahul